

25STCV31308 25STCV31308

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Case Number: 25STCV31308 Hearing Date: July 22, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:15 PM on July 21, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 21, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

If all parties submit on the tentative ruling, no appearances will be required: the Court will adopt the tentative ruling and set a further case management conference in approximately 90 days to allow time for the filing of an amended complaint and a response thereto.

Plaintiff

alleges that she suffered harassment on the basis of sexual orientation and

discrimination on the basis of medical condition, as well as retaliation for engaging in protected activity by reporting patient safety violations, discriminatory conduct, and harassment to UCLA Health.

Defendant

The Regents of the University of California demurs to the Complaint.

TENTATIVE RULING

Defendant

The Regents of the University of California's demurrer to the Complaint is **OVERRULED** as to the first, fifth, sixth and seventh causes of action and **SUSTAINED** with leave to amend as to the second, third, fourth and eighth causes of action.

Plaintiff is given 30 days' leave to amend.

ANALYSIS

Demurrer

Meet

and Confer

The

Declaration of Stephanie E. Gorman reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 430.41.

Discussion

The Court

has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendant

The Regents of the University of California demurs to the Complaint as follows:

1. First

Cause of Action (Harassment on the Basis of Sexual Orientation in Violation of FEHA).

Defendant

argues that a question about Plaintiff's sexual orientation was is not sufficient to create an inference that Plaintiff experienced conduct sufficiently severe or pervasive to qualify as harassment under the FEHA.

Gov. Code § 12923 provides in pertinent part:

(b) A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment. In that regard, the Legislature hereby declares its rejection of the United States Court of Appeals for the 9th Circuit's opinion in *Brooks v. City of San Mateo* (2000) 229 F.3d 917 and states that the opinion shall not be used in determining what kind of conduct is sufficiently severe or pervasive to constitute a violation of the California Fair Employment and Housing Act.

(c) The existence of a hostile work environment depends upon the totality of the circumstances and a discriminatory remark, even if not made directly in the context of an employment decision or uttered by a nondecisionmaker, may be relevant, circumstantial evidence of discrimination. In that regard, the Legislature affirms the decision in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512 in its rejection of the "stray remarks doctrine."

(d) The legal standard for sexual harassment should not vary by type of workplace. It is irrelevant that a particular occupation may have been characterized by a greater frequency of sexually related commentary or conduct in the past. In determining whether or not a hostile environment existed, courts should only consider the nature of the workplace when engaging in or witnessing prurient conduct and commentary is integral to the performance of the job duties. The Legislature hereby declares its disapproval of any language, reasoning, or holding to the contrary in the decision *Kelley v. Conco Companies* (2011) 196 Cal.App.4th 191.

(e) Harassment cases are rarely appropriate for disposition on summary

judgment. In that regard, the Legislature affirms the decision in *Nazir v.*

United Airlines, Inc. (2009) 178 Cal.App.4th 243 and its observation that hostile working environment cases involve issues “not determinable on paper.”

(Gov. Code § 12923(b) – (3)[bold emphasis added].)

Here, the Complaint alleges

[Associate Director] Martocci inappropriately questioned Lopez about her sexual orientation, asking directly if Lopez was gay and inquiring whether Lopez’s partner was “male, female, or transgender.” These invasive personal questions were unrelated to Lopez’s job duties and constituted harassment based on sexual orientation, a protected characteristic under California law. Such questioning created a hostile work environment regardless of Lopez’s actual sexual orientation.

(Complaint, ¶ 12.g.)

This is sufficient to allege harassment on the basis of sexual orientation under the standard set forth in Gov. Code § 12923, as such a direct question about sexual orientation is irrelevant to Plaintiff’s work or job qualifications.

The demurrer to the first cause of action is **OVERRULED**.

2. Second

Cause of Action (Discrimination on the Basis of Medical Condition in Violation of FEHA).

Plaintiff’s second cause of action is fatally deficient for at least three reasons—namely, that she does not allege that she had a disability within the meaning of the FEHA, she does not allege an adverse employment action, and she does not allege facts suggesting discriminatory animus on the basis of Plaintiff’s alleged medical condition.

The

only reference to a medical condition is at ¶ 12.m of the Complaint: “Lopez developed stress-related medical conditions requiring ongoing treatment as a direct result of the hostile work environment.”

As

pled, Plaintiff does not allege a protected medical condition, because workplace stress does not constitute a disability under FEHA:

An employee's inability to work under a particular supervisor because of anxiety and stress related to the supervisor's standard oversight of the employee's job performance does not constitute a disability under FEHA. (*Hobson v. Raychem Corp.* (1999) 73 Cal.App.4th 614, 628 [86 Cal. Rptr. 2d 497] (*Hobson*) [“the inability to perform one particular job, or to work under a particular supervisor, does not constitute a qualified disability” under FEHA (*italics added*)]; see *Weiler v. Household Finance Corp.* (7th Cir. 1996) 101 F.3d 519, 522, 524–525 [both *Hobson* and *Weiler* apply the narrower federal test of disability of “substantially limits” a major life activity, rather than the broader California test of simply “limits”; *Hobson* was disapproved on this point in *Colmenares v. Braemar Country Club, Inc.* (2003) 29 Cal.4th 1019, 1031, fn. 6 [130 Cal. Rptr. 2d 662, 63 P.3d 220] (*Colmenares*)].)

(*Higgins-Williams v. Sutter Med. Found.* (2015) 237 Cal.App.4th 78, 84.)

Plaintiff

attempts to distinguish this case on the ground that the conduct here is not standard oversight. Plaintiff argues that it includes a supervisor interrogating an employee about her sexual orientation, publicly accusing her of a personality disorder to a new hire on that employee's first day of work, interfering with approved FMLA leave, excluding Lopez from her own responsibilities, and subjecting her to verbal abuse in the workplace.

However,

what Plaintiff is alleging is that a particular supervisor—Martocci—is engaging in a course of conduct which causes Plaintiff stress. “FEHA prohibits discrimination based on an employee's disability or perceived disability, but it “does ‘not guarantee employees “a stress-free working environment.”” (Citation omitted.)”(*Doe v. Dep't of Corr. & Rehab.* (2019) 43 Cal.App.5th 721, 735.)

This cause of action is not sufficiently pled.

The demurrer to the second cause of action is SUSTAINED with leave to amend.

3. Third

Cause of Action (Failure to Engage in the Interactive Process in Violation of FEHA).

Defendant

argues that the Complaint is devoid of any allegation that would suggest that Plaintiff was disabled or had a covered medical condition during her presently ongoing employment with The Regents. In fact, Plaintiff delineates her protected characteristic specifically as her sexual orientation. Moreover, Plaintiff's allegations make clear that she participated in a successful interactive process to accommodate her medical treatment. Specifically, Plaintiff alleges that she obtained an FMLA accommodation for "flexibility with arrival times due to ongoing medical treatment." (Complaint ¶ 12n).

As

discussed above, Plaintiff has not pled a protected medical condition. Thus, the failure to engage in interactive process cause of action also fails.

The

demurrer to the third cause of action is SUSTAINED with leave to amend.

4. Fourth

Cause of Action (Failure to Make Reasonable Accommodation in Violation of FEHA).

Defendant

argues that Plaintiff does not allege that she requested and was denied a reasonable medical accommodation. Again, Plaintiff admits that she received an FMLA accommodation for "flexibility with arrival times due to ongoing medical treatment." (Complaint ¶ 12n). There is no other allegation in the complaint related to a FEHA-covered medical condition or disability. Plaintiff's claim that she did not receive the "workplace accommodation" of fixing the temperature control (Complaint ¶ 12k) is not alleged to be related to a medical

condition or disability and therefore must be assumed to not be related.

As

discussed above, Plaintiff has not pled a protected medical condition. Thus, the failure to make reasonable accommodation cause of action also fails.

The

demurrer to the fourth cause of action is SUSTAINED with leave to amend.

5. Fifth

Cause of Action (Failure to Prevent Discrimination and Harassment in Violation of the FEHA).

Defendant

argues that this cause of action fails because the discrimination and harassment causes of action fail.

As

discussed above, the first cause of action for harassment survives demurrer. So too does the sixth cause of action for failure to prevent harassment. A demurrer does not lie to only part of a cause of action or a particular type of damage or remedy. (See *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2003)

108 Cal.App.4th 1028, 1046; PH

II, Inc. v. Superior Court (Ibershof) (1995) 33 Cal.App.4th

1680, 1682.) The proper procedure is to

bring a motion to strike the substantively defective allegation. (Id. at 1682-83.)

The

demurrer to the fifth cause of action is OVERRULED.

6. Sixth

Cause of Action (Retaliation in Violation of FEHA).

Defendant

argues that Plaintiff has not alleged an alleged employment action to support a retaliation claim. Plaintiff does not allege that she was terminated, demoted, or experienced any material change in the terms, conditions, or privileges of her employment. Plaintiff alleges that she received an expectations memo and low rating on her three-month and six-month performance evaluations. (Complaint

¶ 12i.) However, these allegations are not sufficient to support an inference that Plaintiff's employment materially changed in any significant way.

The prohibition is often restated in judicial opinions as a requirement that the discriminatory action result in "adverse employment action." (Citations omitted.) In some cases, adverse action affecting "terms, conditions, or privileges of employment" (actionable) is contrasted with changes that merely displease the employee (not actionable). (Citation omitted) In other words, changes in terms and conditions of employment must be both substantial and detrimental to be actionable. (Citation omitted.) "Minor or relatively trivial adverse actions or conduct by employers or fellow employees that, from an objective perspective, are reasonably likely to do no more than anger or upset an employee cannot properly be viewed as materially affecting the terms, conditions, or privileges of employment and are not actionable, but adverse treatment that is reasonably likely to impair a reasonable employee's job performance or prospects for advancement or promotion falls within the reach of the antidiscrimination provisions of [Government Code] section[] 12940[, subdivision] (a)." (Citation omitted.)

The Trustees assert that none of the actions taken against plaintiffs constitute anything more than minor or relatively trivial lateral transfers with which plaintiffs were simply unhappy.

We disagree. First, we note that the jury was not required to consider each individual mistreatment of a plaintiff in isolation. The jury was entitled [*374] to, and on substantial evidence review we are required to, "consider collectively the alleged [discriminatory] acts[. T]here is no requirement that an employer's [discriminatory] acts constitute one swift blow, rather than a series of subtle, yet damaging injuries." (Citation omitted.)

(Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 373-74 [bold emphasis added].)

The
Complaint alleges at ¶ 12.h – l:

h. Beginning

in November 2024, Lopez filed multiple formal complaints through various UCLA systems. On November 18, 2024, Lopez sent a detailed email to Randy Hissom

documenting Martocci's inappropriate behavior and patient safety concerns. On November 20, 2024, Lopez filed a complaint through EthicsPoint reporting sexual orientation discrimination and workplace misconduct. Lopez filed additional reports on November 22, 2024, detailing systemic patient safety issues and leadership failures.

i. Following

these protected disclosures, Lopez experienced immediate and escalating retaliation. In March 2025, Lopez received her first negative three-month performance evaluation, a dramatic shift from her previously positive reviews throughout her nearly eighteen years at UCLA. On April 14, 2025, Martocci subjected Lopez to verbal abuse in the workplace. Just two months after the initial negative review, in May 2025, Lopez received a formal six-month evaluation containing ratings of "1" in all categories, the lowest possible scores, despite Lopez's documented achievements and leadership on multiple initiatives. In July 2025, after Lopez escalated concerns to Employee Labor Relations regarding Dr. Kang's hostile tone with her staff during a meeting, UCLA issued Lopez a Letter of Expectation, a disciplinary document laying the groundwork for termination. The timing of this disciplinary action immediately following Lopez's additional protected complaint demonstrates the clear retaliatory pattern. During meetings, Martocci began ignoring Lopez's requests for assistance while immediately helping other colleagues who made identical requests. Martocci excluded Lopez from meetings and decision-making processes that directly affected her team and responsibilities.

j. The

retaliation escalated significantly in April 2025 when Martocci engaged in targeted defamation designed to undermine Lopez's authority and professional reputation. On April 21, 2025, during a one-on-one walk with Lopez's newly hired staff member Kassaundra Gutierrez-Thompson on her very first day of work, Martocci made a series of false and defamatory statements about Lopez. Martocci told the new employee that she "didn't know what Lopez did all day," falsely claimed that Lopez had "borderline personality disorder," called Lopez "lazy," stated she didn't expect Lopez to remain employed at UCLA, and disclosed confidential information about ongoing investigations involving Lopez. These statements were calculated to destroy Lopez's professional relationships and create a hostile work environment.

k. Throughout

2025, the retaliatory conduct continued and intensified. Lopez was subjected to excessive micromanagement while her colleagues were not subjected to similar scrutiny. Martocci frequently left work early or arrived late without communicating her availability to Lopez, directly impacting workflow and team coordination. When Lopez requested basic workplace accommodations, such as fixing the temperature control in her office which fluctuated between 60 and 88 degrees for months, her requests were ignored until senior leadership intervened.

I. Lopez was systematically excluded from workplace communications and decision-making processes. In September 2025, Martocci communicated directly with Lopez's staff members about urgent patient appointments and availability without including Lopez in the communication chain, despite Lopez being the Clinical Access Manager responsible for overseeing these processes.

(Complaint, ¶

12.h – I [bold emphasis added].)

Taken

together, these allegations are sufficient to allege actions which are “reasonably likely to impair a reasonable employee's job performance or prospects for advancement or promotion.” (Horsford, supra, 132 Cal.App.4th at 373.)

The

demurrer to the sixth cause of action is OVERRULED.

7. Seventh

Cause of Action (Retaliation in Violation of Labor Code § 1102.5).

Defendant

argues that Plaintiff has not alleged an adverse employment action.

Labor

Code § 1102.5(b) provides:

(b) An

employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a

government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.

(Labor Code § 1102.5(b).)

The standard of “adverse employment action” that our state Supreme Court recently defined and applied to an employment retaliation lawsuit under the California Fair Employment and Housing Act (FEHA) also applies to an employment retaliation lawsuit under Labor Code section 1102.5, subdivision (b) (retaliation for whistleblowing regarding reasonably believed legal violations). (See *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028 [32 Cal. Rptr. 3d 436] (*Yanowitz*).

(*Patten v.*

Grant Joint Union High School Dist. (2005) 134 Cal. App. 4th 1378, 1381.)

For

the reason set forth above re: the sixth cause of action, Plaintiff sufficiently pleads an adverse employment action.

The

demurrer to the seventh cause of action is OVERRULED.

8. Eighth

Cause of Action (Retaliation and Discrimination in Violation of Health & Safety Code § 1278.5).

Defendant

argues that Plaintiff fails to allege that she worked at a “health facility” within the meaning of the Health and Safety Code. While section 1278.5(b)(1)(A) does not specify the type of grievance, complaint or report, it must be related to the care, services, and conditions of a facility. (*Fahlen v. Sutter Central Valley Hospital* (2014) 58 Cal.4th 655, 667 n.6.) It further requires a covered health facility. (*St. Myers v. Dignity Health* (2019) 44

Cal.App.5th 301, 313 314.) The definition of a “health facility” is provided by Health and Safety Code section 1250 and, while it includes mental health facilities, it is limited to those facilities to which patients can be admitted for 24 hours or longer. While Plaintiff identifies herself as a “healthcare worker” (Complaint ¶ 12(a)), Plaintiff’s allegations regarding the scope of her work are impermissibly vague regarding whether she worked in covered healthcare facility. Plaintiff alleges that she made reports regarding referrals to outpatient programs, emergency evaluations, or mobile psychiatric unit intervention (Complaint ¶ 12(c)), none of which supports an inference that Plaintiff provided healthcare from a covered healthcare facility as contemplated by the Health & Safety Code.

The
eighth cause of action is for violation of Health & Safety Code § 1278.5(b)(1)(A).

(b)

(1) A

health facility shall not discriminate or retaliate, in any manner, against a patient, employee, member of the medical staff, or other health care worker of the health facility because that person has done either of the following:

(A) Presented

a grievance, complaint, or report to the facility, to an entity or agency responsible for accrediting or evaluating the facility, or the medical staff of the facility, or to any other governmental entity.

(B) Has

initiated, participated, or cooperated in an investigation or administrative proceeding related to the quality of care, services, or conditions at the facility that is carried out by an entity or agency responsible for accrediting or evaluating the facility or its medical staff, or governmental entity.

(2) An

entity that owns or operates a health facility, or that owns or operates any other health facility, shall not discriminate or retaliate against a person because that person has taken any actions pursuant to this subdivision.

(3) A

violation of this section shall be subject to a civil penalty of not more than

twenty-five thousand dollars (\$25,000). The civil penalty shall be assessed and recovered through the same administrative process set forth in Chapter 2.4 (commencing with Section 1417) for long-term health care facilities.

(Health & Saf. Code § 1278.5(b)[bold emphasis added].)

As

Defendant points out, Health and Safety Code § 1250 defines “health facility” is defined as a facility, place or building to which persons are admitted for a 24-hours stay or longer for the care:

As used in

this chapter, “health facility” means a facility, place, or building that is organized, maintained, and operated for the diagnosis, care, prevention, and treatment of human illness, physical or mental, including convalescence and rehabilitation and including care during and after pregnancy, or for any one or more of these purposes, for one or more persons, to which the persons are admitted for a 24-hour stay or longer, and includes the following types:

(Health & Saf Code § 1250 [bold emphasis added].)

Plaintiff

alleges that she works as a Clinical Access Manager in the UCLA Behavioral Health Associates department. (Complaint, ¶ 12.b.)

Plaintiff

alleges at ¶ 12.c & d.

c. From the

outset of her new role, Lopez identified severe and systemic patient safety violations within the department. The department was receiving crisis referrals for patients with active suicidal ideation, including patients who had recently attempted suicide, without proper safety protocols in place. Lopez documented cases where patients with recent lethal suicide attempts were inappropriately referred to their outpatient program rather than receiving immediate emergency intervention. Primary care physicians were referring patients who required emergency department evaluation or psychiatric mobile response teams to

Lopez's department, which could not provide appropriate crisis care for weeks.

d. Despite

Lopez's repeated efforts to implement appropriate crisis response procedures, including proposing on-site crisis support and proper patient triaging protocols, her recommendations were consistently dismissed by leadership. Lopez discovered that department leadership had instructed staff to lie about patient appointment availability to primary care physicians, prioritizing growth and referrals over patient safety. When Lopez raised these concerns in leadership meetings, her efforts were met with hostility and dismissal, with leaders claiming these were merely "infrequent outliers" despite documentation showing otherwise.

(Complaint, ¶ 12.c & d [bold emphasis and underlining added].)

Based

on Plaintiff's allegations, the UCLA Behavioral Health Associates department does not admit persons for 24-hour stays or longer, and thus does not qualify as a "health facility" within the meaning of Health & Safety Code § 1278.5(b)(1)(A).

As such, the demurrer to the eighth cause of action is SUSTAINED with leave to amend.

Plaintiff is given 30 days' leave to amend.